and unreserved nonmineral land in Alaska or, subject to the provisions of the act of March 8, 1922 (42 Stat. 415; 48 U. S. C. 376–377), of vacant, unappropriated, and unreserved public land in Alaska that may be valuable for coal, oil, or gas deposits, or, under certain conditions, of national forest lands in Alaska, to certain Indians, Aleuts, or Eskimos of full or mixed blood, who reside in and are natives of Alaska.

(b) Under the Allotment Act, as amended, an applicant for allotment must be at least 21 years of age or the head of a family.

(c) Under the terms of the Allotment Act, as amended, the land allotted is deemed to be the homestead of the allottee and his heirs in perpetuity, and is inalienable and nontaxable. An Indian, Aleut, or Eskimo who receives an allotment under the act, or his heirs, however, may with the approval of the Secretary, convey the complete title to the allotted land by deed. The allotment shall thereafter be free of any restrictions against alienation and taxation unless the purchaser is an Indian, Aleut, or Eskimo native of Alaska who the Secretary determines is unable to manage the land without the protection of the United States and the conveyance provides for a continuance of such restrictions.

§ 67.2 *National forest lands.* Allotments may be made in national forests if founded on occupancy of the land prior to the establishment of the particular forest or if an authorized officer of the Department of Agriculture certifies that the land in the application for allotment is chiefly valuable for agricultural or grazing purposes.

§ 67.3 *Coal, oil, or gas lands.* Lands in applications for allotment and allotments that may be valuable for coal, oil, or gas deposits are subject to the regulations of Part 66 of this chapter.

§ 67.4 *Number of allotments; contiguity.* (a) No more than one allotment may be made to any one person.

(b) Lands in an allotment must be in a reasonably compact form and cannot consist of incontiguous tracts of land.

§ 67.5 *Applications for allotment.* (a) Applications for allotment must be filed, in triplicate on Form 4–021, properly and completely executed, in the land office which has jurisdiction over the lands. The application must be signed by the applicant but if he is unable to write his name, his mark or thumb print must be impressed on the application and witnessed by two persons.

(b) If surveyed, the land must be described in the application according to legal subdivisions of the public land surveys. If unsurveyed, it must be described as accurately as possible by metes and bounds and natural objects, and its position with reference to rivers, creeks, mountains or mountain peaks, towns or other prominent topographic points or natural objects or monuments, and to well-known nearby roads and trails, must be given.

(c) The application must be accompanied by a statement by the applicant that he has plainly indicated on the ground the corners of the land applied for by setting substantial posts or heaping up mounds of stones on each corner and that he has posted a notice of the application on the land, describing the tract applied for in the terms employed in the application on Form 4–021.

(d) Any application for allotment of lands which extend more than 160 rods along the shore of any navigable waters must be accompanied by a showing that the lands are not necessary for harborage, landing and wharf purposes and that the public interests will not be injured by waiver of the 160-rod limitation (see Part 77 of this chapter).

(e) Applications for allotment will be referred by the Bureau of Land Management to the Bureau of Indian Affairs for certification by an authorized officer that the applicant is a native qualified to make application under the Allotment Act, as amended. If the application is returned without such a certification, the application will be rejected.

(f) The filing of an application for allotment will grant no rights to the applicant over and above those which are specified in §§ 67.6 and 67.11. If the applicant does not submit the proof required by § 67.7 within 6 years of the filing of his application in the land office, his application for allotment will terminate without affecting the rights of the applicant gained by virtue of his occupancy of the land, or his rights to make another application. If the application was filed prior to the effective date of this paragraph, the application will be terminated under this paragraph only by decision of the authorized officer after appropriate notice to the applicant, granting him a reasonable period within which to file proof of continuous use and occupancy of the land as required by the regulation in this part.

§ 67.6 *Segregative effect of applications.* The filing of an acceptable application for allotment will segregate the lands to the extent that conflicting applications for such lands will be rejected, except when accompanied by a showing that the applicant for allotment has permanently abandoned occupancy of the land.

§ 67.7 *Allotments.* An allotment will not be made until the applicant has made satisfactory proof of substantially continuous use and occupancy of the land for a period of five years and the lands are surveyed by the Bureau of Land Management. Such proof must be made in triplicate and filed in the appropriate land office. It must be signed by the applicant, but if he is unable to write his name, his mark or thumb print must be impressed on the statement and witnessed by two persons. The showing of five years' use and occupancy may be submitted with the application for allotment if the applicant has then used and occupied the land for five years, or at any time after the filing of the application when the required showing can be made. The proof should give the name of the applicant, identify the application on which it is based, and appropriately describe the land involved. It should show the periods each year applicant has resided on the land; the amount of the land cultivated each year to garden or other crops; the amount of crops harvested each year; the number and kinds of domestic animals kept on the land by the applicant and the years they were kept there; the character and value of the improvements made by the applicant and when they were made; and the use, if any, to which the land has been put for fishing or trapping.

§ 67.8 *Approval of conveyances.* Applications for approval of conveyances by an allottee or his heirs must be filed with the appropriate office of the Bureau of Indian Affairs.

§ 67.9 *Appeals.* An appeal pursuant to the rules of practice, Part 221 of this chapter, may be taken from the decision of the authorized officer of the Bureau of Land Management.

SEGREGATION OF OCCUPIED LANDS

§ 67.11 *Occupied lands not subject to entry.* Lands occupied by Indians, Aleuts, and Eskimos in good faith are not subject to entry or appropriation by others.

[F. R. Doc. 58–10099; Filed, Dec. 5, 1958; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 1762]

[Anchorage 017473]

ALASKA

WITHDRAWING LANDS FOR USE OF THE ALASKA RAILROAD; PARTLY REVOKING EXECUTIVE ORDERS NOS. 1919½ OF APRIL 21, 1914, AND 8102 OF APRIL 29, 1939, AND PUBLIC LAND ORDER NO. 253 OF DECEMBER 7, 1944, REVOKING PROCLAMATION NO. 1519 OF APRIL 16, 1919

By virtue of the authority vested in the President by the Act of March 12, 1914 (38 Stat. 305; 48 U. S. C. 304) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws, nor disposals of materials under the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604) as amended and reserved for use of the Alaska Railroad for railroad purposes, as an addition to its Anchorage terminal reserve:

SEWARD MERIDIAN

T. 13 N., R. 3 W.,
Sec. 9, NE¼SW¼SW¼, W½SW¼SW¼, those portions lying North of Ship Creek.

The areas described contain 11.81 acres.

2. Proclamation No. 1519 of April 16, 1919, reserving lands for townsite purposes and for other purposes in connection with the construction and operation of railroad lines, which has heretofore been revoked in part by Executive Orders No. 3515 of July 18, 1921, and No. 8621 of December 27, 1940, and by Public Land Order No. 659 of August 24, 1950, is hereby revoked in its entirety. The follow-

ing-described lands are affected by this revocation:

SEWARD MERIDIAN

Beginning at a point 600 feet north of the north bank of Ship Creek on the east line of the NW¼SW¼ Sec. 9, T. 13 N., R. 3 W., S. M., thence in a northeasterly direction, 600 feet from and parallel to the meander line of the north bank of Ship Creek, to the west boundary of the Chugach National Forest as indicated upon the attached diagram; thence south along the west boundary of said Forest to a point 600 feet south of the south bank of Ship Creek; thence in a southwesterly direction 600 feet from and parallel to the meander line of the south bank of Ship Creek to the intersection of the east line of Ship Creek townsite withdrawal as defined in Executive Order No. 1919½ of April 21, 1914, thence north along the east line of said withdrawal to the southwest corner of the NW¼SW¼ Sec. 9, T. 13 N., R. 3 W., thence east 1,320 feet; thence north along the east line of the NW¼SW¼ of said Sec. 9 to the point of beginning.

The tract described contains approximately 935 acres.

3. Executive Order No. 1919½ of April 21, 1914, as amended by Executive Order No. 3672 of May 8, 1922, reserving lands for townsite purposes; Executive Order No. 8102 of April 29, 1939, reserving lands under jurisdiction of the War Department for use as a military reservation, and Public Land Order No. 253 of December 7, 1944, reserving lands for use of the War Department for military purposes, are hereby revoked so far as they affect the following-described lands:

SEWARD MERIDIAN

a. Beginning at the intersection of the south line of Section 6, T. 13 N., R. 3 W., Seward Meridian and the line of mean high tide of Knik Arm, thence:
East, 900 feet;
North, 1,320 feet to a point on the north boundary of lot 4, Sec. 7;
West, 360 feet approximately, to a point on the line of mean high tide of Knik Arm;
Southwesterly, 1,400 feet approximately, along line of mean high tide to point of beginning.

The area described contains 19.12 acres.

b. Beginning at the intersection of the north line Section 7, T. 13 N., R. 3 W., Seward Meridian and the line of mean high tide of Knik Arm, thence:
East, 390 feet along north boundary Sec. 7;
South, 1,900 feet;
West, 830 feet;
North, 580 feet approximately, to a point on the north boundary lot 2, Sec. 7;
N. 12°30' E., 850 feet approximately, to a point on the line of mean high tide of Knik Arm;
Northeasterly, 530 feet along the line of mean high tide to point of beginning.

The area described contains approximately 30 acres.

c.
T. 13 N., R. 2 W., S. M.,
Sec. 7, lots 2 and 3, those parts lying south of the right of way of Glenn Highway;
Sec. 7, lot 4;
Sec. 12, that part of the SE¼ described as follows:
Beginning at a point on the east boundary Sec. 12, identical with the northwest corner of lot 4, Sec. 7, T. 12 N., R. 2 W., thence:
N. 89°58'38" W., 350.23 feet;
N. 0°00'38" W., 646.51 feet;
N. 66°18'02" E., 382.53 feet;
South, 800.37 feet to the point of beginning.

The areas described aggregate 80.20 acres.

4. The lands described in paragraph 2 of this order remain in other withdrawals for power and military purposes.

Those described in paragraph 3 of this order are included in applications to purchase filed by the City of Anchorage (Anchorage-034650 and 034758) under the act of June 14, 1926 as amended by the act of June 4, 1954 (44 Stat. 741; 68 Stat. 173; 43 U. S. C. 869) as amended. They will not be subject to appropriation under any other public-land law, therefore, unless such applications are not concluded or the classifications are revised, in which event a further order of opening will be issued by an authorized officer of the Bureau of Land Management, specifying the time when and the manner in which applications for the lands may be received and the land disposed of.

ROGER ERNST,
Assistant Secretary of the Interior.

DECEMBER 2, 1958.

[F. R. Doc. 58-10098; Filed, Dec. 5, 1958; 8:46 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 33—CENTRAL REGION

SUBPART—NORTH PLATTE NATIONAL WILDLIFE REFUGE, NEBRASKA

FISHING

Basis and purpose. Pursuant to the authority conferred upon the Secretary of the Interior by section 10 of the Migratory Bird Conservation Act of February 18, 1929 (45 Stat. 1224; 16 U. S. C. 715i), as amended and supplemented, and acting in accordance with the authority delegated to me by Commissioner's Order No. 4 (22 F. R. 8126), I have determined that fishing on the North Platte National Wildlife Refuge, Nebraska, would be consistent with the management of the refuge.

By notice of proposed rule making published in the FEDERAL REGISTER of October 22, 1958 (23 F. R. 8131), the public was invited to participate in the adoption of a proposed regulation (conforming substantially with the rule set forth below) which would permit fishing on the North Platte National Wildlife Refuge by submitting written data, views, or arguments to the Director, Bureau of Sport Fisheries and Wildlife, Washington 25, D. C., within a period of 30 days from the date of publication. No comments, suggestions, or objections having been received within the 30-day period, the regulations constituting Part 33 are amended by adding a new Subpart—North Platte National Wildlife Refuge, Nebraska, and § 33.145 reading as follows:

§ 33.145 *Fishing permitted.* Subject to compliance with the provisions of Parts 18 and 21 of this chapter, noncommercial fishing is permitted during the daylight hours of the period from January 15 to September 30, inclusive, on the waters of the North Platte National Wildlife Refuge, Nebraska, subject to the following conditions, restrictions, and requirements:

(a) *State laws.* Strict compliance with all applicable State laws and regulations is required.

(b) *Use of boats.* The use of boats, motorboats, and other floated craft is permitted on the waters of the refuge during the daylight hours of the period January 15 to September 30, inclusive.

(Sec. 10, 45 Stat. 1224; 16 U. S. C. 715i)

In accordance with the requirements imposed by section 4 (c) of the Administrative Procedure Act of June 11, 1946, 60 Stat. 238; 5 U. S. C. 1003 (c), the foregoing amendment shall become effective on the 31st day following publication in the FEDERAL REGISTER.

Dated: December 1, 1958.

D. H. JANZEN,
Director, Bureau of Sport Fisheries and Wildlife.

[F. R. Doc. 58-10097; Filed, Dec. 5, 1958; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR (1954) Part 1]

INCOME TAX; TAXABLE YEARS BEGINNING AFTER DECEMBER 31, 1953

ADJUSTMENTS REQUIRED BY CHANGES IN METHOD OF ACCOUNTING

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury or his delegate. Prior to the final adoption of such regulations, consideration will be given to any comments or suggestions pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Attention: T:P, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. Any person submitting written comments or suggestions who desires an opportunity to comment orally at a public hearing on these proposed regulations should submit his request, in writing to the Commissioner within the 30-day period. In such a case, a public hearing will be held and notice of the time, place, and date will be published in a subsequent issue of the FEDERAL REGISTER. The proposed regulations are to be issued under the au-